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No. 98-822

IN THE
# Supreme Court of the United States

FRIENDS OF THE EARTH, *et al.*,
*Petitioners,*

v.

LAIDLAW ENVIRONMENTAL SERVICES (TOC), INC.,
*Respondent.*

**On Writ of Certiorari to the United States Court of Appeals for the Fourth Circuit**

## RESPONDENT'S REPLY TO PETITIONERS' RESPONSE TO SUGGESTION OF MOOTNESS

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This reply is submitted to address the argument set forth at page 3 of Petitioners' Response Brief that the facility closure issue had been raised and briefed at the certiorari stage of the litigation and, further, that this Court's granting of certiorari amounted to a determination that the closure of the facility did not moot the case.[1]

[1] By choosing to address this single argument, Respondent does not in any way acknowledge the validity of the Petitioners' alternative arguments.

That is an overstatement given the context in which the issue arose.

First, it should be borne in mind that there are several variations of "mootness." In *Friends of the Earth v. Laidlaw Environmental Services (TOC), Inc.*, 149 F.3d 303 (4th Cir. 1998), the Fourth Circuit reasoned that the case had become moot because the sole remedy sought by Petitioners on appeal—civil penalties—would not redress any alleged injuries. *Id.* at 305. At page 19 of its Petition for a Writ of Certiorari, Petitioners raised for the first time the issue of mootness that, under *United States v. W. T. Grant Co.*, 345 U.S. 629 (1953) and its progeny, occurs when intervening events or changed circumstances during the pendency of a case establish that there is no reasonable expectation that the alleged wrongful conduct would recur. This issue was not before the Fourth Circuit. Having just raised the issue, the Petitioners then argued that "Laidlaw could easily change its practice again at any time in the future." Petition for Certiorari at p. 19.

Respondent addressed the Petitioners' assertion at page 10 of Respondent's Brief in Opposition, stating that ". . . there is no possibility that a wrong will be repeated due to the closure of the facility." Similarly, page 7 of the brief filed by *Amici Curiae* South Carolina Chamber of Commerce *et al.* supporting Respondent, in disputing the Petitioners' assertion, noted that the ". . . facility has been in closure since August 1998 pursuant to a Consent Order entered into with DHEC." Neither brief discussed the issue in any detail.

FOE responded with several arguments on the facility closure issue, including, *inter alia*, the following at page 4 of its Reply Brief:

> 3. Laidlaw suggests that the case is moot because it has shut down its incinerator since the Court of Appeals issued its decision. Def. Opp. 1, n. 10. However, Laidlaw has submitted *no affidavit or other evidence* to support the bare statements in its brief *or any indication whether the shutdown is temporary or permanent.* Plaintiffs have ascertained that Laidlaw has not taken any action to terminate the NPDES permit. App. 33a. Since Laidlaw's NPDES permit is still in effect, it may discharge in the future whenever it cares to do so. (Emphasis added).



After Petitioners' Petition for a Writ of Certiorari was granted, essentially the same arguments were repeated at page 8, n. 7 of the Brief for Petitioners.[2]

At that point, Respondent significantly increased its focus on the facility closure issue and obtained additional information on the extent of and the circumstances surrounding the closure. The Respondent's Suggestion of Mootness followed, supported by the Affidavit of Charisse G. McLeod, which established that, for economic reasons, the Roebuck, South Carolina facility had been permanently closed, equipment removed and dismantled, and the property put up for sale. Stated otherwise, the Respondent simply addressed the criticism set forth at page 4 of Petitioners' Reply Brief regarding the absence of this type of information.

Prior to the filing of the Suggestion of Mootness, the facility closure issue had been ancillary to the issues before the Fourth Circuit and upon which Petitioners' Petition for a Writ of Certiorari was based. It was not until the Suggestion of Mootness was filed that this Court had sufficient facts to evaluate this issue. Those facts indicate unequivocally that the facility has been permanently

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[2] If, as Petitioners contend, the Court had resolved this issue by granting the Petition for Certiorari, one questions why Petitioners would address this issue post-certiorari.

closed and the NPDES discharges to the North Tyger River at issue in this lawsuit have been permanently discontinued. As noted in *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 66 (1987):

> Long-standing principles of mootness * * * prevent the maintenance of suit when "there is no reasonable expectation that the wrong will be repeated." *United States v. W. T. Grant Co.*, 345 U.S. 629, 633 (1953). * * *

Clearly, the facts of this permanent closure more than satisfy this "reasonable expectation" standard.

## CONCLUSION

For the foregoing reasons, the Suggestion of Mootness should be granted.

Respectfully submitted,

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